

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202204641	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 07/12/2022 9:15 PM, Wednesday, 07/13/2022 12:00 AM	Location of Incident: 133 West Tremont Avenue, 46th Precinct Stationhouse	18 Mo. SOL 1/12/2024	Precinct: 46		
Date/Time CV Reported Thu, 07/14/2022 7:34 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 07/14/2022 7:34 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Daniel Demarco	03893	964483	046 PCT
2. PO Sammy Figueroa	20454	963030	046 PCT
3. PO Carolyn Daley	09308	967471	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Mcdermott	03802	950858	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Daniel Demarco	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco stopped § 87(2)(b)	
B . PO Sammy Figueroa	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Sammy Figueroa stopped § 87(2)(b)	
C . PO Carolyn Daley	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Carolyn Daley stopped § 87(2)(b)	
D . PO Daniel Demarco	Force: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco used physical force against § 87(2)(b)	
E . PO Daniel Demarco	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco forcibly touched § 87(2)(b)	
F . PO Daniel Demarco	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco frisked § 87(2)(b)	
G . PO Daniel Demarco	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco searched § 87(2)(b)	
H . PO Daniel Demarco	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco failed to provide § 87(2)(b) with a business card.	
I . PO Sammy Figueroa	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Sammy Figueroa failed to provide § 87(2)(b) with a business card.	

Officer(s)	Allegation	Investigator Recommendation
J . PO Carolyn Daley	Abuse: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Carolyn Daley failed to provide § 87(2)(b) with a business card.	
K . PO Daniel Demarco	Abuse: On July 13, 2022, at the 46th Precinct Stationhouse in the Bronx, Police Officer Daniel Demarco provided an inaccurate official statement against § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On July 14, 2022, § 87(2)(b) reported this complaint to the CCRB by phone.

On July 12, 2022, at approximately 9:15 p.m., in the vicinity of 133 West Tremont Avenue in the Bronx, § 87(2)(b) was walking alone. PO Daniel Demarco, PO Sammy Figueroa, and PO Carolyn Daley, all of the 46th Precinct, stopped § 87(2)(b) on the suspicion that he was carrying a firearm (**Allegations A, B, C: Abuse of Authority – Stop**, § 87(2)(g)).

PO Demarco allegedly grabbed § 87(2)(b) arm with one hand and stuck his other hand down § 87(2)(b) pants and placed it on his buttocks (**Allegation D: Force – Physical force**, § 87(2)(g)) (**Allegation E: Abuse of Authority – Sexual misconduct (forcible touching)**, § 87(2)(g)).

PO Demarco frisked § 87(2)(b) bag and then immediately searched it (**Allegation F: Abuse of Authority – Frisk**, § 87(2)(g)) (**Allegation G: Abuse of Authority – Search (of person)**, § 87(2)(g)). PO Demarco, PO Figueroa, and PO Daley then all left without providing § 87(2)(b) with a business card (**Allegations H, I, J: Abuse of Authority – Failure to provide RTKA card**, § 87(2)(g)).

PO Demarco provided inaccurate statements pertaining to this incident (**Allegation K: Abuse of Authority – Inaccurate statement**, § 87(2)(g)).

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

No summons was issued, and no arrest was made. There is BWC footage from PO Demarco, PO Figueroa, and PO Daley (BRs 08 – 10). There is also cellphone footage from § 87(2)(b) (BR 07). Relevant portions will be discussed below.

Findings and Recommendations.

Allegation (A) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Sammy Figueroa stopped § 87(2)(b)

Allegation (C) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Carolyn Daley stopped § 87(2)(b)

Allegation (F) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco frisked § 87(2)(b)

Allegation (G) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco searched § 87(2)(b)

It was undisputed that PO Demarco, PO Daley, and PO Figueroa stopped § 87(2)(b) and that PO Demarco frisked and searched § 87(2)(b).

§ 87(2)(b) provided an intake (BR 01) and verified (BR 02) statement to the CCRB. He did not provide an explanation as to why officers stopped him in his intake complaint.

§ 87(2)(b) (BR 02) stated he was walking on Tremont Avenue when he noticed a black

Ford sedan with tinted windows following him at about three miles per hour, which made him feel unsafe. The front passenger seat window was rolled halfway down, but he could not see inside. § 87(2)(b) was unable to estimate how long the vehicle followed him, but he eventually heard a male voice from the car, identified by the investigation as PO Demarco, ask him, "What's that you got in your bag? It looks pretty heavy." § 87(2)(b) was wearing a tee shirt, blue jeans, some necklaces, and a crossbody bag that was approximately eight by twelve inches large. The bag held § 87(2)(b) wallet, keys, and his barbering equipment, including hair clippers and trimmers. When § 87(2)(b) noticed the car was following him, he began recording with his cellphone. § 87(2)(b) did not respond to PO Demarco's question as he did not know who it was. The car pulled up next to § 87(2)(b) and four uniformed officers exited the vehicle and approached him. PO Demarco then frisked and searched § 87(2)(b). § 87(2)(b) did not give verbal consent to search him until after PO Demarco began searching him, at which point he said, "You can search me; I have nothing to hide."

§ 87(2)(b) cellphone video (BR 07) is more comprehensive than BWC footage as it contains an additional thirty seconds of video and audio. The video begins and the camera is pointing at § 87(2)(b) who is walking outside on the sidewalk. He has a crossbody bag on, with the strap visible. § 87(2)(b) holds up his phone to show a black car following him on the road. At 00:24, PO Demarco yells something from the car but it is unintelligible. § 87(2)(b) replies, "What happened? What?" PO Demarco says, "What's up with your bag? Why's it so heavy?" Officers then exit the black car and approach § 87(2)(b). PO Demarco begins frisking and searching § 87(2)(b). At 00:47, § 87(2)(b) says, "You ain't ask me for my ID. You're searching me, right?" PO Demarco says, "You want an explanation or what?" § 87(2)(b) replies, "I don't need no explanation."

In PO Daley's BWC (BR 08), the video begins with PO Demarco and PO Figueroa, who are in the front seats of the RMP, appearing to look at something or someone to the right outside of the frame. They are slowly driving down the road. There is no audio for the first minute, during which time officers exit the RMP. At 1:00, PO Demarco frisks § 87(2)(b) bag. He then unzips the bag, shines his flashlight inside the bag, and sticks his hand in the bag briefly.

PO Demarco (BRs 03, 04) stated that he was in the back seat of an unmarked police vehicle with PO Figueroa, who was driving, and PO Daley, who was sitting in the front passenger seat. PO Demarco, who was approximately 15 feet away, observed § 87(2)(b) walking alone carrying a bag on his right side that "looked heavy" because it was swinging back and forth. The bottom of the bag looked "particularly heavy," with a bulge that resembled the shape of an iPhone. These observations led him to believe that § 87(2)(b) was carrying a weapon, so he notified PO Daley and PO Figueroa of § 87(2)(b).

§ 87(2)(b) then said something along the lines of, "I've got nothing on me, you can check." PO Demarco might have asked § 87(2)(b) what was in his bag, but he could not recall what he said specifically. PO Demarco, PO Daley, and PO Figueroa collectively decided to continue observing § 87(2)(b) for a bit longer because they all believed that § 87(2)(b) might be carrying a firearm in his bag because it looked heavy. PO Demarco could not remember anything about § 87(2)(b) behavior that led him to believe § 87(2)(b) was carrying a weapon. After observing § 87(2)(b) for about thirty seconds to a minute, all three officers exited their vehicle and approached § 87(2)(b).

PO Demarco explained that he wanted to observe § 87(2)(b) for a bit longer after § 87(2)(b) gave consent to search to avoid being "invasive." The officers decided to exit their vehicle based off of their additional observations following § 87(2)(b) "offer" to search him. However, PO Demarco was unable to articulate any additional observations made of § 87(2)(b) regarding his bag or his behavior after § 87(2)(b) gave verbal consent to search.

After viewing § 87(2)(b) cellphone video of the incident (BR 07), PO Demarco amended his prior statement to note that he "must have" continued observing § 87(2)(b) for longer than thirty seconds since § 87(2)(b) is not heard on the video giving verbal consent to

search, but he could not estimate how long. PO Demarco reiterated that § 87(2)(b) “must have” given verbal consent to search him before the video began. PO Demarco added that he prepared the consent to search report at the end of his tour back at the stationhouse and that because he filled out the form, he was sure that § 87(2)(b) had provided verbal consent.

PO Figueroa (BR 05) stated that officers observed § 87(2)(b) for about one to two minutes before approaching him and during that time he drove his vehicle slowly behind and up beside § 87(2)(b) in order to do so. PO Figueroa believed PO Demarco said something to him regarding the weight of his bag. He consistently stated that § 87(2)(b) gave officers verbal consent to search prior to the officers exiting their vehicle, but he could not remember what, exactly, § 87(2)(b) said or when while they were observing him that he said this.

PO Daley (BR 06) provided a statement consistent with PO Demarco and PO Figueroa’s.

The investigation obtained the Consent Search Report prepared by PO Demarco for this incident (BR 11). The report contains no narrative, only that the person stopped was a black male and that consent was given.

People v. Gonzalez, 39 N.Y.2d 122 (BR 12) found that an exception to the search warrant requirement is voluntary consent to the search. Consent to a search is voluntary when it is a true act of will, an unequivocal product of essentially free and unconstrained choice. Factors to determine voluntariness include, but are not limited to, whether the individual was in custody, uncooperative or evasive, and advised of their right to refuse consent, which is not mandatory.

The validity of this stop, frisk, and search is contingent on the alleged verbal consent to search provided by § 87(2)(b) is not heard on video giving verbal consent. PO Demarco stated that he knew § 87(2)(b) provided consent because he prepared a consent search report. Although neither BWC footage nor § 87(2)(b) cellphone footage capture § 87(2)(b) providing consent, neither are entirely comprehensive. The investigation could not determine when PO Demarco, PO Daley, and PO Figueroa first began observing § 87(2)(b) and if any additional conversation (including a verbal consent to search) was had prior to when the videos began. The only verbal consent to search noted was in § 87(2)(b) statement, in which he stated that he gave consent only after PO Demarco began searching him – however, his cellphone video, which documents the entire search, does not capture § 87(2)(b) giving verbal consent to be searched at any point.

§ 87(2)(g)

Allegation (D) Force: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco forcibly touched § 87(2)(b)

§ 87(2)(b) consistently stated that PO Demarco, immediately upon approaching him, grabbed and bent his wrist as he frisked and searched him (BRs 01, 02). He also consistently stated that PO Demarco grabbed his “private area,” specifically his buttocks, while searching him.

PO Daley’s BWC (BR 08) shows PO Demarco approach, frisk, and search § 87(2)(b) at 1:00. The only point of contact PO Demarco makes with § 87(2)(b) is with his bag.

Comprehensive BWC confirms that PO Demarco did not bend § 87(2)(b) wrist, nor did he inappropriately touch § 87(2)(b) during this incident § 87(2)(g)

Allegation (H) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Daniel Demarco failed to provide § 87(2)(b)

with a business card.

Allegation (I) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Sammy Figueroa failed to provide § 87(2)(b) with a business card.

Allegation (J) Abuse of Authority: On July 12, 2022, in the vicinity of 133 West Tremont Avenue in the Bronx, Police Officer Carolyn Daley failed to provide § 87(2)(b) with a business card.

It was undisputed that PO Demarco, PO Figueroa, and PO Daley all participated in stopping § 87(2)(b) and did not provide § 87(2)(b) with a business card.

In PO Figueroa's BWC (**BR 10**), at 1:38, PO Figueroa says to § 87(2)(b) "You need my contact info, brother?" § 87(2)(b) says yes. PO Figueroa provides his name and shield number. He does not provide a physical business card.

PO Demarco (**BR 03**) stated he did not provide a business card because § 87(2)(b) did not ask him for one.

PO Daley (**BR 05**) stated she did not provide a business card because it was not required of her.

PO Figueroa (**BR 04**) stated that he did not provide a business card because he did not have any business cards on him at the time of the incident.

NYC Admin Code 14-174 (**BR 13**) states that officers are to offer a business card at the conclusion of any such activity that does not result in an arrest or summons, including a search of person. It also states that officers are to write down their information on a hand-written card if they do not have an adequate supply of pre-printed business cards on hand.

Administrative Guide 304-11 (**BR 21**) states that officers must "Offer pre-printed RIGHT TO KNOW BUSINESS CARD upon conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present," including a stop, frisk, or search of a person.

PO Demarco, PO Daley, and PO Figueroa all participated in stopping § 87(2)(b) and thus were required to provide him with business cards. While PO Figueroa offered his "contact info," he did not provide his information on a business card, either pre-printed or handwritten, as required. § 87(2)(g)

Allegation (K) Abuse of Authority: On July 13, 2022, at the 46th Precinct Stationhouse in the Bronx, Police Officer Daniel Demarco provided an inaccurate official statement against

§ 87(2)(b)

There were discrepancies in the consent to search form prepared for this incident (**BR 11**) compared to BWC footage and officer testimony.

The consent to search form notes that § 87(2)(b) refused business cards upon request. This contradicts what is seen in BWC, specifically in PO Figueroa's BWC (**BR 10**). At 1:38, PO Figueroa offers his "contact info," and § 87(2)(b) responds, "yes." PO Figueroa then provides his name and shield number.

The consent to search form also notes PO Demarco as the "MOS asking for consent." However, PO Demarco testified (**BRs 03, 04, 22**) that he did not need to ask for consent during this incident because § 87(2)(b) willingly gave it to him without being asked.

The consent to search form also lists PO Figueroa as the officer who prepared and submitted the form, when PO Demarco (**BRs 03, 04, 22**) and PO Figueroa (**BRs 05, 23**) both testified that it was PO Demarco who prepared and submitted the report.

The form is also endorsed by Sgt. Michael McDermott, of the 46th Precinct. The endorsement is timestamped November 16, 2022, three weeks after PO Demarco's first CCRB interview and two weeks before PO Figueroa's first CCRB interview.

PO Demarco (**BR 22**), PO Figueroa (**BR 23**), and Sgt. McDermott (**BR 24**) all consistently testified that at the 46th Precinct stationhouse, officers share a small number of computers to complete various police documentation, and officers will sometimes prepare and submit forms when the computer is logged into other officers' NYPD accounts – resulting in reports listing incorrect information as to who prepared a report.

PO Figueroa testified that he did not prepare the consent form and did not consult with PO Demarco about any information pertaining to the report.

PO Demarco testified that he prepared the report the day after the incident and did not consult any officer regarding any information on the report. Regarding the discrepancy on the form that § 87(2)(b) refused business cards, PO Demarco said, "That's how I must've remembered it." He had no independent recollection of reviewing any police documentation, such as BWC footage, prior to preparing the report. Regarding the discrepancy on the form that PO Demarco asked for consent, PO Demarco reiterated what he previously testified (**BRs 02, 03, 22**) in that he believed the difference between this digital consent to search form and handwritten search forms (that require a civilian's signature) is whether or not an officer needs to ask for consent. He was unable to explain why the digital form then requires officer to note which officer asked for consent, since, to his understanding, he believed it was unnecessary for this report. He testified that he prepared it this way "to refresh my memory in case of instances like this." He had no additional explanation as to why he did this.

Sgt. McDermott (**BR 24**) had no independent recollection of endorsing this consent form or discussing the form with any officer. He explained that he does not get notified when consent forms are submitted, which results in a backlog of reports that he endorses all at once when he remembers to do so. He added that there is no protocol for verifying any information on the consent forms, but that he personally will verify there is BWC footage if the form notes that BWC was activated. He did not review or verify any additional information on the form, nor could he recall any specific details pertaining to this incident.

Administrative Guide 304-10 (BR 25) prohibits officers from providing statements (either written or verbal) that a member of the service knows to be untrue, which are material to the outcome of the investigation. The guide defines an "inaccurate statement" as a statement that an officer knows, or should know, includes incorrect material information. There is no intent to deceive, but rather the member's actions are grossly negligent.

PO Demarco incorrectly noted in the consent to search form that § 87(2)(b) refused business cards, when BWC footage shows otherwise. PO Demarco also listed himself on the form as the officer who asked § 87(2)(b) for consent to search. He then testified to the CCRB that he did not ask for consent because it was unnecessary, and his explanation as to why this was unnecessary (that § 87(2)(b) provided unprompted, voluntary consent) is not captured on any video. PO Demarco chose to prepare this specific type of consent form because he did not ask § 87(2)(b) for consent to search him although the specific form he chose requires officers to note the "MOS asking for consent." The question of whether or not PO Demarco properly obtained consent from § 87(2)(b) to search him is clearly material to the outcome of the investigation, and it is undisputed that there are discrepancies in police statements in regard. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
- PO Demarco has been a member of service for five years and this is the first CCRB complaint in which he is listed as a subject.
- PO Figueroa has been a member of service for six years and has been a subject of two CCRB complaints and six allegations, none of which were substantiated.
- PO Daley has been a member of service for three years and has been a subject in one CCRB complaint and one allegation which was not substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On March 14, 2023, a FOIL request for any Notice of Claim was filed with the Office of the Comptroller and will be added to the case file upon receipt (BR 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad: 10

Investigator:	Carter Garfield	Inv. Garfield	04/06/2023
	Signature	Print Title & Name	Date

Squad Leader:	Maura R. Roche	IM Maura R. Roche	04/07/2023
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CCRB Case # 202204641

Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date